



STANDING ORDER NO. L&O/82/2022

MAINTENANCE OF LAW AND ORDER AT THE TIME OF REMOVAL OF UNAUTHORISED ENCROACHMENT BY HAWKERS AND VENDORS CAUSING OBSTRUCTION ON FOOTPATHS, PAVEMENTS AND PUBLIC ROADS

INTRODUCTION

The problem of unauthorised encroachment by hawkers and vendors causing obstruction on footpaths, pavement and public roads has become grave in many areas. This Standing Order aims at clarifying the role of the Police Department on the subject.

LEGAL PROVISIONS

- (a) Hawkers and vendors are regulated by the Municipal Corporation of Delhi i.e MCD in the National Capital through "The Street vendors (Protection of Livelihood and Regulation of Street Vending) Act, -2014". Hawkers and vendors are issued certificate of vending for carrying out vending activities in a certain vending zone. The hawkers and vendors, who don't possess a valid certificate of vending, are unauthorised hawkers or unauthorised vendors.
- (b) Section 283 of IPC says that whoever, by doing any act, or by omitting to take order with any property in his possession or under his charge, causes danger, obstruction or injury to any person in any public way or public line of navigation, shall be punished with fine, which may increase to 200/- rupees.
- (c) Section 66 (1)(b) of The Delhi Police Act -1978 says that it shall be duty of every Police officer to take temporary charge of all property found lying in any public street, if owner or person in charge of such property on being directed to remove the same, refuses or fails to do so.
- (d) Section 83 of The Delhi Police Act -1978 penalizes any obstruction in a street.
- (e) Section 201 of Motor Vehicles Act -1988 penalizes those who obstruct the flow of traffic on the public highway. It is applicable to both motorized and non motorized vehicles causing traffic blockade.

NEED OF ETERNAL VIGILANCE

The local police shall exercise sharp vigil to check unauthorised encroachment by hawkers and vendors causing obstruction on footpaths, pavement and public roads and thereby endangering the life of pedestrians, side walkers and road users.

UNAUTHORIZED VENDORS/HAWKERS

A large number of unauthorized vendors and hawkers are mingled with the authorized vendors and create chaos on the streets, footpaths and roads. The unauthorized vendors/hawkers occupy the footpaths, pavements, force pedestrians to walk on road and thereby endanger the lives of common citizen. It is the duty of every Beat Officer and Division Officer to check certificate of vending of every vendor either a mobile vendor or a stationary vendor. If any unauthorized vendor is found obstructing footpath, street or road, he/she should be booked under the legal provisions mentioned above. Vending items should be seized and an inventory of seized items should be made.

If the menace of unauthorized vendors is alarmingly high, MCD authorities should be roped in. SHO/Insp. Law & Order concerned should coordinate with civic agencies for a drive of removal of unauthorized encroachment by hawkers and vendors.

The Joint Encroachment removal drive should be personally supervised by Insp. Law and Order and he should ensure presence of sufficient number of police personnel during the drive.

REQUISITION OF MANPOWER

SHO/Insp. Law & Order should assess the situation and if required, SHO/Insp. Law & Order should send a requisition in writing to District DCP, requiring outside force in certain number during drive of removal of unauthorized hawkers/vendors from footpaths, streets and roads.

The local bodies such as MCD, NDMC and DDA shall be asked to intimate to the District DCP concerned sufficiently in advance the date, venue, quantum of operations, so that the District DCP can make an assessment of the situation from the law and order point of view.

SUPERSESSION CLAUSE

This Standing Order supersedes the previous standing order No. 250/1989 issued vide No. 6144-6400/XXIX/86/Spl. C& T (AC-V) dated 25.01.1989.

DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana

(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.

06.06.2022

No. *44901-45050* /Record Branch/PHQ dated Delhi, the *6/6/22*.

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